



Appeal Decision

Site visit made on 11 August 2026

by Graham Wraight BA(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 24 August 2026

Appeal Ref: 6011065

Rykneld, Main Road, Old Brampton, Derbyshire S42 7JG

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs Smith against the decision of North East Derbyshire District Council.
 - The application Ref is 25/00930/FLH.
 - The development proposed is an extension over existing garage with balcony to rear.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. I have used the description of development stated on the decision notice in the banner header above. Although this differs from that stated on the application form, the appellant has confirmed that they have no objection to it.
3. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. The relevant Green Belt policy test has not materially changed, and I have therefore not referred back to the parties for comment.

Main Issues

4. The main issues are:
 - (i) Whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies;
 - (ii) The effect of the proposal on the openness and purposes of the Green Belt; and
 - (iii) Whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development

5. Policy GB7 of the Framework sets out categories of development that are not inappropriate in the Green Belt. This includes the extension of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension will not result in a disproportionate increase in size compared to the original building. Policy SS10 of the North East

Derbyshire Local Plan 2021 (LP) is broadly consistent with this, as it includes reference to an extension to a building that does not result in disproportionate additions over and above the size of the original building. There is no definition in either local or national planning policy as to what represents a disproportionate increase or addition.

6. The appeal dwelling was extended following the granting of planning permission in 1978 and then in 2017. The Council states that the previous extensions have resulted in an approximately 124% increase in the volume of the original dwelling. They calculate that there would be an increase in volume of approximately 143% if the appeal proposal were to be built in addition to what has already taken place. Those figures are not disputed by the appellant. An increase in volume of approximately 143% firmly supports a conclusion that what is proposed would be a disproportionate increase in size compared to the original building. This conclusion is not altered by there being no increase in footprint proposed or because the style, proportions and materials of the proposal would be consistent with the existing dwelling.
7. The appellant's case is predicated on the proposed extension being a minor increase in the scale of the existing dwelling, and this feeds into their conclusion of there being no disproportionality in their Statement of Case. But both the Framework and the LP are clear that the comparison is with the original building, not the existing one. This necessitates the consideration of all previous and proposed extensions on a cumulative basis.
8. The appellant does anticipate my conclusion that the cumulative extensions would result in a conflict with Green Belt policy, and they refer to this as a 'technical conflict'. This however downplays the significance of a proposed development being found to be inappropriate development in the Green Belt. The Framework is clear that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. It also states that any harm to the Green Belt should be given substantial weight.
9. In conclusion, the proposal would not fall into any of the exceptions listed in Policy SS10 of the LP or Policy GB7 of the Framework, and it would be inappropriate development in the Green Belt.

Openness and purposes

10. The objective of Green Belt policy, as set out by the Framework, is to prevent urban sprawl by keeping land permanently open. Openness is, in effect, the absence of development and it has both a spatial and visual aspect to it.
11. The proposal would result in some reduction in openness, in the area above the single storey flat roofed garage. This to my mind would be an impact on visual openness, as there would be no physical encroachment by reason of there being no increase in footprint. Whilst the appellant refers to matters relating to the boundary screening, the set back of the dwelling, the size of the plot and there being no harm to the character and appearance of the area, these factors do not mean that there is no impact on openness. There would be no conflict with the Green Belt purposes set out in Policy GB2 of the Framework.
12. For these reasons I conclude that there would be harm to Green Belt openness, but on consideration of the scale of the development taken by itself the harm

would be limited. Nonetheless, the proposal would be contrary to the specific guidance within the Framework in this regard.

Other Considerations

13. The appellant wishes to install solar panels on their property to reduce its carbon footprint, and they state that the roof plane of the proposed development offers the only opportunity to do this. Whilst no technical evidence has been provided to that effect, the sloping roof plane would face south and the existing roofs facing that direction do appear constrained in both size and structure. This is a consideration which carries substantial weight in favour of the proposal.
14. The proposal would improve the appearance of the dwelling, but only in a very minor way, especially as flat roofs are present on other parts of the building to its front and rear. The dwelling is also set well back from the public domain and in a large plot. Views of the existing garage are mainly glimpsed from the pavement along Main Road and are from a distance. These factors mean that the visual benefits would be limited. There would be some short-term economic benefits during construction, but these too would be limited because of the scale of what is proposed.
15. The occupier of an adjoining property has made representations that the proposal would improve their privacy, but there is no specific explanation as to why that would be the case. Given this and the generous existing separation that exists between the two dwellings, this is a consideration which carries limited weight. That there would be no harm to the living conditions of the occupiers of adjacent dwellings nor harm to highway safety are considerations of neutral weight.
16. There is nothing before me to demonstrate that existing issues with the flat roof over the garage could only be rectified if the appeal proposal is constructed. This consideration therefore carries no weight in its favour. I acknowledge that the appellant has revised and resubmitted the scheme to reduce its scale and that they sought pre-application advice, but these too are not matters which weigh in favour of permitting the appeal development.

Planning Balance & Conclusion

17. The Framework at Policy GB6 paragraph 2 states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations. In making this assessment, substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness.
18. The proposal would be inappropriate development in the Green Belt and would result in harm to its openness, albeit limited. Whilst there are other considerations identified to which I have given substantial and limited weight in its favour, they do not individually or cumulatively cross the high threshold of clearly outweighing the harm to the Green Belt and to openness. Consequently, the very special circumstances necessary to justify the development do not exist.

19. For the reasons given above, I conclude that the development conflicts with Policy SS10 of the LP and with the policies of the Framework where they seek to protect the Green Belt. Therefore, the appeal should be dismissed.

Graham Wraight

INSPECTOR